

Sanjeev Kumar v. State of U.P.

Allahabad High Court · Division Bench · 13 April 2018 · Writ-C No. 12067 of 2018 · **Writ dismissed as withdrawn with liberty to file a proper petition.**

HEADNOTE

Writ challenging recovery on a disputed May 2017 consumption bill was dismissed as withdrawn after licensee instructions were placed on record, with liberty to file a proper petition in accordance with Ashok Kumar, the Electricity Act and the U.P. Electricity Supply Code, 2005. The consumption and recovery dispute was not decided.

FACTUAL SUMMARY

The petitioner challenged recovery of electricity charges, alleging that May 2017 consumption was disproportionate and sporadic compared with his periodical consumption. On 3 April 2018 the Division Bench granted the distribution licensee three days to obtain instructions on that dispute; the matter was then adjourned to 13 April 2018. After instructions dated 11 April 2018 were placed on record, the Court observed that the petitioner had to address those instructions before challenging recovery, permitted withdrawal, and dismissed the writ as withdrawn with liberty to file a proper petition.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

withdrawal of writ challenging recovery

HOLDING

After the licensee placed instructions on a May 2017 consumption dispute, the writ challenging recovery was dismissed as withdrawn, with liberty to file a proper petition if the law so permits in accordance with Ashok Kumar and the Electricity Act / U.P. Electricity Supply Code, 2005. The consumption and recovery dispute was not decided on merits. ¶ 3

PRINCIPLE TAGS

procedural-listing-no-construction Writ challenging recovery on a disputed May 2017 consumption bill was dismissed as withdrawn after licensee instructions were placed on record, with liberty to file a proper petition in accordance with Ashok Kumar, the Electricity Act and the U.P. Electricity Supply Code, 2005.. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE MAY 2017 CONSUMPTION WAS DISPROPORTIONATE OR THE RECOVERY LAWFUL

Instructions dated 11.04.2018 were not adjudicated; the writ was withdrawn with liberty. ¶ 3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660			3	Referred

